

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SULAKADZE AND OTHERS v. RUSSIA

(Applications nos. 52527/18 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

2 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Sulakadze and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 February 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. They also raised other complaints under the provisions of the Convention and the Protocols thereto.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia* (no. 74568/12, ECHR 2016 (extracts)), *Navalnyy and Yashin v. Russia* (no. 76204/11, 4 December 2014), and *Kasparov and Others v. Russia* (no. 21613/07, 3 October 2013), the Court already found a violation in respect of issues similar to those in the present cases.

9. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

12. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and its Protocol in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning different aspects of unlawful deprivation of liberty of the organisers or participants of public events, *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO), *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, related to the lack of a

suspensive effect of an appeal and immediate execution of a sentence of administrative detention).

IV. REMAINING COMPLAINTS

13. In view of the above findings in paragraph 12, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, most recently, *Savelov and others v. Russia* [Committee], no. 62815/10 and 5 others, 1 December 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings;

3. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the dispersal of the public assemblies;

4. *Holds* that there has been a violation of the Convention and the Protocol thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

6. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 2 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (Article of CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	52527/18 24/10/2018	**Oleg Georgiyevich SULAKADZE** 1949	Sholokhov Igor Nikolayevich Kazan	Mother's Day in Ostankino Moscow 11/03/2018	Article 20.2 § 5	fine of RUB 20,000	Moscow City Court 14/05/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 14/05/2018	3,900
2.	52531/18 24/10/2018	**Svetlana Vadimovna KRYLOVA** 1981	Sholokhov Igor Nikolayevich Kazan	Manifestation against Mr Putin's re-election Kazan 05/05/2018	Article 20.2 § 5	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 08/08/2018	Art. 5 (1) - unrecorded detention and in excess of three hours, on 04/07/2018, when the applicant was called to the police station to draw up a record of administrative offence related to the participation in manifestation on 05/05/2018, she remained detained until the first instance hearing in the administrative-offence proceedings; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Supreme Court of the Tatarstan Republic, 08/08/2018	3,900

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3.	1194/19 11/12/2018	**Sergey Alekseyevich BRENYUK** 1954	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Meeting with electorate Angarsk 22/08/2020	Article 20.2 § 1	fine of RUB 10,000	Irkutsk Regional Court 27/10/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the three sets of the administrative-offence proceedings indicated in column no. 8	3,900
				Political Manifestation Angarsk 22/08/2020	Article 20.2 § 2	fine of RUB 25,000	Irkutsk Regional Court 27/10/2020		
				Manifestation against pension reform Angarsk 04/09/2018	Article 20.2 § 2	fine of RUB 20,000	Irkutsk Regional Court 08/11/2018		
4.	11860/19 07/02/2019	**Igor Olegovich MARTYNENKO** 1993	Pershakova Yelena Yuryevna Moscow	Artistic manifestation Irkutsk 01/05/2018	Article 20.2 § 2	fine of RUB 25,000	Irkutsk Regional Court 07/08/2018	Art. 5 (1) – Partially unrecorded detention as administrative suspect on 14/06/2018 and 15/06/2018, in excess of three hours; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Irkutsk Regional Court, 07/08/2018	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (Article of CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
5.	31151/19 27/05/2019	**Roman Vladimirovich MALCHIKOV** 1980	Sozonov Ruslan Vladimirovich Nizhniy Novgorod	Manifestation against pension reform Nizhniy Novgorod 09/09/2018	Article 20.2 § 6.1	10 days' administrative detention	Nizhniy Novgorod Regional Court 06/12/2018	Art. 5 (1) - detention as administrative suspect on 02/10/2018, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings- Nizhniy Novgorod Regional Court, 06/12/2018; Prot. 7 Art. 2 - the sentence of administrative detention imposed by the first instance court was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	3,900
6.	51001/19 19/09/2019	**Oleg Yuryevich YESHEVSKIY** 1970	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 5	fine of RUB 12,000	Arkhangelsk Regional Court 13/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 13/08/2019	3,900
7.	53511/19 25/09/2019	**Dmitriy Sergeyevich TOMATIN** 1992	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 5	fine of RUB 13,900	Arkhangelsk Regional Court 27/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 27/06/2019	3,900

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8.	54131/19 26/09/2019	**Igor Stanislavovich MOKHNATKIN** 1985	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 6.1 of CAO	fine of RUB 14,000	Arkhangelsk Regional Court 20/06/2019	Art. 5 (1) - arrest on 19/05/2019 and an overnight detention as administrative suspect in order to be escorted for the hearing in the trial court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 20/06/2019	3,900
9.	59286/19 31/10/2019	**Mariya Viktorovna KOSTENKO** 1987	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 6.1	fine of RUB 14,000	Arkhangelsk Regional Court 17/05/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 17/05/2019	3,900
10.	6793/20 17/01/2020	**Anton Yuryevich YEGOROV** 1990	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 10,000	Moscow City Court 16/09/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 16/09/2019	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (Article of CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
11.	7776/20 17/01/2020	**Denis Sergeyevich NOCHEVKA** 1992	Benyash Mikhail Mikhaylovich Sochi	Manifestation against the pension reform Krasnodar 09/09/2018	Article 20.2 § 5	fine of RUB 10,000	Krasnodar Regional Court 23/07/2019	Art. 5 (1) - detention as administrative suspect on 09/09/2018, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Krasnodar Regional Court, 23/07/2019	3,900
12.	8432/20 24/01/2020	**Ivan Viktorovich LEONTYEV** 1982	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 6	fine of RUB 10,000	Arkhangelsk Regional Court 21/11/2019	Art. 5 (1) - detention as administrative suspect on 17/10/2019 - 18/10/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 21/11/2019	3,900
13.	8433/20 24/01/2020	**Yuriy Nikolayevich SHCHERBACHEV** 1951	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.0 § 8	fine of RUB 160,000	Arkhangelsk Regional Court 26/11/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 26/11/2019	5,000

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14.	10138/20 13/02/2020	**Konstantin Nikolayevich KOBANENKO** 1969	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 15,000	Moscow City Court 20/09/2019	Art. 5 (1) – detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 20/09/2019	3,900
15.	10143/20 13/02/2020	**Aleksey Igorevich VOROBYEV** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 20,000	Moscow City Court 16/09/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 16/09/2019	3,900
16.	10260/20 13/02/2020	**Vladislav Vagifovich SEYFULLAYEV** 1979	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 08/10/2019	3,900

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17.	10264/20 13/02/2020	**Kirill Yevgenyevich DUSHIN** 1988	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 20,000	Moscow City Court 24/10/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 24/10/2019	3,900
18.	10972/20 07/02/2020	**Rinat Munirovich DUBIN** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 15,000	Moscow City Court 02/10/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 02/10/2019	3,900
19.	11159/20 07/02/2020	**Artem Aleksandrovich VITYUTNEV** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5	fine of RUB 15,000	Moscow City Court 18/10/2019	Art. 5 (1) - detention as administrative suspect on 03/08/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 18/10/2019	3,900

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20.	14072/20 28/02/2020	**Yelena Aleksandrovna SHVAREVA** 1979	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 5	fine of RUB 11,000	Arkhangelsk Regional Court 21/01/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 21/01/2020	3,900
21.	14858/20 28/02/2020	**Artur Vladimirovich NOVIKOV** 1999	Sholokhov Igor Nikolayevich Kazan	Manifestation against a landfill construction Arkhangelsk 07/04/2019	Article 20.2 § 5	fine of RUB 12,000	Arkhangelsk Regional Court 21/01/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Arkhangelsk Regional Court, 21/01/2020	3,900
22.	27965/20 25/06/2020	**Alim Nazirovich AKHKUBEKOV** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - detention as administrative suspect on 27/07/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 06/11/2019	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (Article of CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
23.	29895/20 13/07/2020	**Vitaliy Valeryevich ZOTOV** 1992	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5	fine of RUB 15,000	Moscow City Court 24/10/2019	Art. 5 (1) – overnight detention as administrative suspect on 27/07/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the above administrative-offence proceedings - Moscow City Court, 24/10/2019	3,900
24.	29995/20 13/07/2020	**Aleksandr Eduardovich SOLODOVNIK** 1991	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5	fine of RUB 15,000	Moscow City Court 20/01/2020	Art. 5 (1) - detention as an administrative suspect on 27/07/2019, in excess of three hours, for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings - Moscow City Court, 20/01/2020	3,900

[1] Plus any tax that may be chargeable to the applicants.